

Law on *Gymnasium*

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(Unofficial translation)

I. GENERAL PROVISIONS

Article 1 (Contents of the Act)

This Act regulates education in general and technical *gymnasia* leading to higher education studies after a successfully passed *matura* examination.

Technical *gymnasia* shall offer, in addition to general, vocational elective *matura* examination subjects.

Article 2 (Goals)

The task of general and technical *gymnasia* (hereinafter: *gymnasium*) shall be to:

- at an internationally comparable level, transfer the knowledge needed for the continuation of studies in higher education;
- develop the capacity for independent critical judgment and responsible action;
- transfer the knowledge of the Slovene language and literature and, in areas with mixed ethnicity populations, also of the Italian and Hungarian languages and literature as well as develop the skills of understanding and communicating in standard language;
- foster the awareness of individual's integrity;
- develop citizenship and national identity and the knowledge of the history and culture of Slovenia;
- educate for the responsible protection of freedom, tolerance and peaceful coexistence, and respect for others;
- develop and protect our cultural heritage and inform about other cultures and civilizations;
- educate for common values of culture and civilization based on the European tradition;
- develop the commitment to the establishment of a free, democratic and social state;
- develop the awareness of the responsibility for the natural environment and the health of the individual;
- develop the awareness of the rights and responsibilities of the individual and the citizen;
- develop the talents and the capacity for artistic experience and expression;
- enable the choice of a profession.

Article 3 (State Approved Education)

Education at the secondary school level shall be satisfied with the completion of a *matura* examination at the end of *gymnasium*.

Article 4
(*Matura*)

Matura examinations shall be taken at the end of the fourth year of *gymnasium* or *gymnasium* course pursuant to the *Matura* Examination Act.

With the consent of the minister having jurisdiction over education (hereinafter: minister), *gymnasias* may offer an international baccalaureate, which shall be equivalent to the *matura* under this Act.

Article 5
(Duration of Education)

The *gymnasium* education program shall last four years.

Article 6
(*Matura* Course)

Gymnasias shall offer *matura* courses as a special preparatory program for *matura* examinations.

The *matura* course shall last one year at the most.

The program, organization and execution of *matura* courses shall be adapted to participants by taking into consideration their prior knowledge.

Article 7
(Status)

Separate education institutions or organizational units in education institutions shall be established to carry out *gymnasium* curricula.

Article 8
(Language of Instruction)

The language of instruction in *gymnasias* shall be Slovene.

The language of instruction in *gymnasias* for the Italian minority shall be Italian, in bilingual *gymnasias* Slovene and Hungarian.

In areas with mixed populations of Slovene and Italian nationalities, defined as mixed ethnicity areas, in *gymnasias* offering instruction in Slovene students shall learn Italian, in those offering instruction in Italian they shall learn Slovene.

Under a special regulation issued by the minister, parts of individual subjects may additionally be offered in a foreign language for the purpose of international comparison or preparation for an international baccalaureate.

Article 9 (Equal Opportunity)

The citizens of the Republic of Slovenia shall have the right to education in *gymnasia* under equal conditions.

Slovene nationals without Slovene citizenship shall have the right to education in *gymnasia* under the same conditions as the citizens of the Republic of Slovenia.

Pursuant to this Act, Slovene nationals without Slovene citizenship shall be the descendants of parents of Slovene nationality no more than three times removed in direct succession.

Foreigners may pursue education at *gymnasia* under the same conditions as the citizens of the Republic of Slovenia when it is based on the principle of reciprocity.

In compliance with international agreements, the minister shall, each year, determine the number of places for foreign citizens who pursue their education at *gymnasia* on the principle of reciprocity.

Article 10 (Education of Students with Special Needs)

Education of gifted, blind and visually impaired, deaf and hearing impaired students, students with motor disorders, speech impaired students, students with long illnesses, and students with behavior and emotional disorders (hereinafter: students with special needs) shall be offered in *gymnasia* in compliance with this Act and special regulations.

II. ORGANIZATION OF EDUCATIONAL ACTIVITIES

1. Admission Requirements

Article 11 (Admission)

Individuals having completed basic education may seek enrollment in *gymnasia*.

Education programs may determine the following additional admission requirements:

- proficiency in classical or modern foreign languages offered as electives in elementary schools;
- a test of special talents or sports achievements.

Article 12 (Admission to *Matura* Courses)

Individuals who have successfully completed a secondary vocational, technical or some other secondary professional school or the third grade of *gymnasium* and have interrupted their studies for at least a year shall be eligible for admission to *matura* courses.

Individuals who have not attained education in compliance with the previous paragraph but have completed basic education and successfully passed a test of knowledge at the level of the third grade of *gymnasium* shall also be eligible for admission to *matura* courses.

Article 13 (Pre-enrollment Announcement)

Every year, the ministry having jurisdiction over education shall publish a joint announcement of enrollment in the first grade of *gymnasia* and *matura* courses six months prior to the beginning of the school year. The schools shall obtain the minister's approval of the number of study places.

Article 14 (Limited Enrollment)

If the number of applicants significantly exceeds the personnel and spatial capacities of a school, the number of students to be enrolled in the first grade and *matura* course may be limited in individual school years.

Article 15 (Selection Criteria)

The criteria for the selection of applicants shall be set forth by education programs.

In the admission of applicants to the first grade of *gymnasia*, their scholastic achievement during the third cycle of basic education shall be considered; in the admission to *matura* courses, it shall be their achievement in the course of previous education.

Article 16 (Statutory Instruments)

More detailed stipulations concerning the enrollment announcement and procedure shall be set forth by the minister.

2. Students

Article 17 (Student Status)

Individuals enrolled in a *gymnasium* or *matura* course shall be considered students.

Article 18 (Concurrent Enrollment)

Students have the right to pursue education at several schools or in several education programs at the same time.

If a student is pursuing education at several schools, the schools shall agree on the manner of the student's completion of the requirements.

The completion of requirements set forth by education programs may be adapted to the needs of students enrolled concurrently in several schools, to promising or outstanding sportsmen/women and to students preparing for international knowledge contests in the manner set forth by the minister.

Article 19 (Accelerated Progress)

The teaching staff of the school may enable students to complete the requirements of the education program by taking examinations in a shorter time than stipulated by the education program.

Article 20 (Repeating)

Students who fail to complete the requirements of the education program may repeat a grade of the same program once.

Students of the final grade who fail to fulfill the requirements of that grade by the end of that school year may fulfill the outstanding obligations by taking examinations.

Notwithstanding the stipulations of paragraph one of this Article, students shall have the right to attend the same grade several times when they fail to fulfill the requirements of the education program because of parenthood, military service, extreme social or family circumstances, disabilities or illness or some other justifiable reason.

Article 21 (Conditional Advancement)

The principal may decide that a student who fails to fulfill the requirements stipulated by the education program because of illness or other justifiable reasons specified in paragraph three of Article 20 shall nevertheless be advanced to a higher grade. The principal shall and determine the conditions the student must fulfill.

Article 22 (Termination of the Student Status)

The student status shall be terminated:

- for students of the final grade 30 days after the end of the school year;
- if a student fails to register for the next grade by the set deadline during the course of studies;
- if a student withdraws;
- if a student is expelled; or
- if a student becomes employed or self employed.

Article 23
(Prolonged Student Status)

The student status of concurrently enrolled students, promising and outstanding sportsmen/women and students who fail to progress or complete the education program for justifiable reasons may be prolonged for two years at the most.

The decision shall be made by the school's principal.

Article 24
(Interruption of Education)

The principal shall set forth the requirements for the continuation and completion of education for students who interrupt their education for more than two years, if the education program has been substantially changed.

Article 25
(Transfers)

Students have the right to transfer to another school during the course of studies. The principal of the school to which the student seeks admission shall set forth the requirements to be met by the student for the continuation of education and deadlines for meeting the requirements.

Prior to making the decision, the principal shall obtain the opinion of the teaching staff.

Article 26
(Awards and Prizes)

Schools shall set forth the criteria and procedures for granting awards, prizes and other honors to students.

Article 27
(Disciplinary Actions)

Pursuant to this Act and school bylaws, the following disciplinary actions may be imposed on students for the infringement of duties or failure to carry out responsibilities:

- notice,
- reprimand,
- expulsion from school.

Expulsion shall be imposed for the most severe violations or a repeated failure to carry out responsibilities and shall be effective for two years at the most.

Detailed stipulations concerning students' duties, the procedure and manner of imposing disciplinary actions and school order shall be set forth by the minister.

Article 28
(Judicial Protection of Rights)

Administrative complaints may be filed against the final decision of the competent body of the school on the acquisition or loss of student status.

Article 29
(Accommodation in Student Dormitories)

Individuals with student status who also meet other requirements shall be eligible for accommodation in student dormitories.

Requirements, criteria and procedures for the admission to student dormitories shall be set forth by the minister.

Article 30
(Adults)

Employed or unemployed individuals, individuals who have lost student status or who are aged over 18 can pursue education as adult learners. The organization and length of education, knowledge assessment and grading, progress to a higher grade and the schedule of classes shall be adapted to their needs.

The Act regulating adult education shall apply to the status, rights and duties, keeping of documents and records of adult learners.

Article 31
(Student Body)

The students of a *gymnasium* shall establish a student body. The student body shall operate at the school and class level.

The student body shall be lead by a committee consisting of the representatives of all classes.

The manner of work of the student body and its organs shall be regulated by its bylaws.

The student body shall organize extracurricular activities, discuss all items related to the education process and its management, and submit its proposals to school bodies.

Gymnasium students may form the association of *gymnasium* students.

Article 32
(Meals)

Gymnasia shall offer at least one meal per day for all students.

3. Scope and Organization of Education Process

Article 33 (Work Load)

Organized educational activities shall include:

- instruction in general education subjects and technical theory subjects and exercises,
- compulsory electives,
- educational excursions,
- practical instruction and other forms of practical work,
- seminar projects,
- other forms of individual or group work.

The instruction in general education subjects and profession-oriented theoretical subjects and exercises and required electives, not including physical education, may amount to 30 hours per week at the most. The amount of all types of educational activities shall not exceed 36 hours per week.

Article 34 (School Year)

The school year shall begin on 1 September and end on 31 August of the next year.

Organized educational activities for students shall last 38 weeks in each school year at the most.

The schedule of classes, days off and the schedule and duration of school holidays shall be set forth in the school calendar issued by the minister.

Article 35 (Annual Work Plan)

In *gymnasia*, educational activities shall be carried out according to the annual work plan which contains:

- the scope and schedule of class instruction and other types of educational activities in compliance with the syllabus,
- enrollment plan,
- grouping of students into classes and groups,
- examination dates,
- in-service education and training of educators,
- cooperation with other schools, student dormitories, research, sports and cultural organizations, and
- other tasks.

The financial feasibility of the annual work plan shall be checked in the process of its adoption.

Within the framework of the annual work plan, schools, with the consent of parents, can offer educational activities which otherwise do not form part of the syllabus to students who wish to participate.

Schools shall present students' rights and duties, the characteristic elements of the education program and work organization to parents and students in a special publication.

The compulsory parts of the publication shall be determined by the minister having jurisdiction over education.

Schools shall develop a school chronicle.

Article 36 (Adapted Execution of Education Programs)

Schools shall adapt the execution of education programs and their duration to the needs of gifted students and students with special needs.

In compliance with standards and criteria, schools shall provide additional support to such students, forms classes with a lower number of students and furnish necessary additional equipment and learning materials.

4. Assessment, Grading and Advancement of Pupils

Article 37 (Assessment and Grading)

Students' achievements in reaching the standards of knowledge set forth by catalogues and in meeting the requirements set forth by education programs shall be evaluated by assessment and grading.

Article 38 (Grading System)

The knowledge of individual subjects and other parts of the education program shall be assessed in writing, orally and by examinations, exercises, seminar papers and products, presentations and in other ways.

Teachers shall enable students to participate in planning the assessment and grading of achievements.

In case of oral assessment, students shall be informed immediately about the grade awarded, while graded written tests shall be shown to students.

Each school year, the average achievement shall also be calculated at the end of classes.

Article 39

(Advancement to a Higher Class Standing)

Students shall progress to the next higher grade if they receive positive marks in all subjects and meet all the requirements set forth by education programs at the end of classes in a school year.

Students awarded negative grades in no more than three subjects shall have the right to take a reexamination.

Article 40 (The Right to Complain)

Students may file a complaint with the principal against grades in individual subjects within three days after the receipt of a report card for a particular grade.

The principal shall appoint a committee within three days after the receipt of the complaint at the latest. The committee shall reassess the student's knowledge within three days at the latest. At least one of the committee members shall not be a school employee.

The committee's grade shall be final.

Article 41 (Statutory Instruments on Assessment, Records and Certificates)

More detailed stipulations of the assessment, grading form and contents of records on knowledge assessment and grading, and the form and content of public documents certifying the completion of education shall be set forth by the minister.

III. COLLECTION AND PROTECTION OF STUDENTS' PERSONAL DATA

Article 42 (Lists of Records with Personally Identifiable Information)

Elementary schools shall keep the following records containing personally identifiable information:

1. records of applicants;
2. records of enrollment and students enrolled by grades, classes and groups in roll books;
3. personal records of individual students from their enrollment to the completion of education or withdrawal;
4. register of students containing general data on enrolled students and the course of their education from their enrollment to the completion of education or withdrawal;
5. data on motor skills and morphological characteristics;
6. minutes of meetings of school *matura* committee;
7. minutes of *matura* examinations;
8. reports on *matura* examinations;
9. records of examinations containing the application for the examination, the details of the examinations and grades awarded;
10. records of students receiving counseling;

- 11.records of adult learners and of adults taking examinations;
- 12.records of student assessment and grading;
13. records of issued certificates on the completion of education.

Student dormitories shall keep records of points 1, 2 and 3 of paragraph one of this Article and the records of the social status of the students applying for fee reduction.

The records of points 1 to 4, 6 to 9 and 11 to 13 of paragraph one of this Article shall include: pupil's first and family name, sex, date, place, community and country of birth, address and prior education.

In addition to the information of the preceding paragraph, the records of point 3 of paragraph 1 of this Article shall also include the information on pupil's overall achievement, examinations passed, advancement, and completion of education.

In addition to the information of paragraph 3 of this Article, the records of point 5 of paragraph 1 of this Article shall also include the information on pupil's orthopedic skills and morphological characteristics referring to: pupil's height, body volume, speed of alternative movements, explosive power, coordination of body movement, physical endurance of the body, motor skills, muscular endurance of shoulders and arms, running speed and endurance under the condition of below-maximum continuing effort.

Student's consent is required for the collection of personal data of the preceding paragraph.

In addition to the information of paragraph 3 of this Article, the records of point 10 of paragraph 3 of this Article shall include:

- family and social anamnesis,
- development anamnesis,
- diagnostic procedures,
- procedures for professional support,
- expert opinions of other institutions: welfare centers, health institutions, homes, counseling and educational support centers.

The consent of students and their parents or guardians is needed for the collection of personal data of point 10 of paragraph 1 of this Article. When students are endangered by their families and need protection, the consent of the student shall be sufficient.

Counselors shall be obliged to treat the information of point 10 of paragraph one of this Article with professional confidentiality. Other professionals having received such data due to the nature of their work shall also treat them as professional confidentiality.

More detailed stipulations on the data collection method and the keeping of records and documents of this Article shall be determined by the minister.

Article 43 (Use of Data Files)

Personal data on pupils kept in files of the preceding Article shall be collected, processed, stored and transferred for the needs of *gymnasia* and the ministry having jurisdiction over education; in other cases, they may be used only in compliance with special regulations.

For research and statistical analyses, personal information may be used and published only in a form that does not disclose pupils' identity.

Article 44 (Storing Records)

Records of Article 42 of this Act shall be stored permanently in compliance with special regulations, except when otherwise provided by this Act.

Article 45 (Documents)

Stipulations concerning the keeping, use and storage of personal data of the records under this Act shall also apply to the documents serving as the basis of personal data collection. Documents on prior education shall be returned to students after the enrollment procedure is finished.

IV. CONTROL

Article 46 (Control)

Control over the operations of *gymnasia* in accordance with law and their meeting the requirements for operation shall be exercised by the School Inspectorate in compliance with this Act and special regulations.

V. TRANSITIONAL AND FINAL PROVISIONS

Article 47 (Gradual Implementation)

Education programs in compliance with this Act shall be implemented gradually; in the school year 1998-99, they will be provided for all first graders.

Without prejudice to the stipulations of paragraph two of Article 15 of this Act, the achievement in the sixth, seventh and eighth grade shall be considered in selecting the applicants until the introduction of the third tier of elementary school.

Article 48 (Continuation of Education)

Students having enrolled in secondary education programs before the day of entry into force of this Act shall have the right to continue and complete their education in those programs within the term of their regular duration extended by two years at the most.

Article 49
(Completion of Education)

Students enrolling in *gymnasia* after entry into force of this Act but before the introduction of new education programs shall pursue and complete education under the conditions stipulated by this Act. They shall complete their education within the term of the program's regular duration extended by two years at the most.

Students of paragraph one and three of Article 20 of this Act and students of the preceding paragraph having the right to repeat a year in compliance with the regulations in force so far, but are unable to do so because of the gradual introduction of education programs pursuant to this Act, shall continue and complete education in new education programs in compliance with this Act. In such cases, students have the right to repeat the grade in an appropriate new program.

Article 50
(Subordinate Legislation)

Subordinated legislation pursuant to this Act shall be issued by the minister within one year after entry into force of this Act.

Until entry into force of the legislation stipulated by this Act, the effective subordinate legislation shall remain in force, with the exception of provisions not in compliance with this Act.

The Regulations on *Matura* Examinations (Official Gazette of the Republic of Slovenia No. 50/93, 52/94, 20/95 and 77/95) shall apply until the entry into force of the *Matura* Act.

Article 50
(Adjustment of Charters)

The charters of *gymnasia* shall be aligned with this Act within one year of its entry into force at the latest.

Article 52
(Entry into Force)

This Act shall enter into force on the fifteenth day after its publication in the Official Gazette of the Republic of Slovenia.